
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER ON
DEFENDANT’S MOTION IN LIMINE
TO PRECLUDE UTILIZATION OF
ARTICLE I, SECTION 12 OF THE
UTAH CONSTITUTION AND RULE
1102 OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING (DOCKET
525)**

Case No. 251403576

Judge Tony F. Graf, Jr.

In his Motion in Limine to Preclude the Utilization of Article I, Section 12 of the Utah Constitution and Rule 1102 of the Utah Rules of Evidence, Defendant Tyler James Robinson seeks an order preventing the State of Utah from relying on hearsay to establish probable cause at his upcoming preliminary hearing. The motion was fully briefed. The court heard oral arguments on June 12, 2026. Now being fully advised of the premises and relevant legal authorities, the court hereby respectfully **DENIES** the Defendant’s motion for the reasons set forth below.

DISCUSSION

In Utah, the primary purpose of the preliminary hearing “is limited to determining whether probable cause exists.” Utah Const. art I, § 12. Although the preliminary hearing is a critical stage of the criminal process, it is not a trial and does not involve a determination of guilt or innocence. *State v. Lopez*, 2020 UT 61, ¶ 44-46, 474 P.3d 949, 963 (distinguishing burden at preliminary hearing versus burden at trial); *see also State v. Virgin*, 2006 UT 29, ¶ 20, 137 P.3d 787, 792 (recognizing

evidence at preliminary hearing need not support finding of guilt beyond reasonable doubt); *compare State v. Timmerman*, 2009 UT 58, ¶ 13, 218 P.3d 590, 594 (identifying single preliminary hearing purpose post constitutional amendment), *with State v. Anderson*, 612 P.2d 778, 783-85 (Utah 1980) (relying on preliminary hearing's multiple purposes pre constitutional amendment) *superseded by* Utah Const. art I, § 12. A defendant's constitutional rights, as a result, may be relaxed during this specific stage of the criminal proceedings. *See Lopez* at ¶ 46. The court does not understand this principle to mean that constitutional protections are categorically inapplicable at a preliminary hearing. Rather, because the preliminary hearing serves the limited purpose of determining whether probable cause exists, the scope and operation of particular constitutional protections must be evaluated in light of that purpose. Accordingly, the court addresses Defendant's constitutional arguments individually while recognizing that the procedural safeguards required at a probable-cause determination need not mirror those required at trial.

Defendant raises several constitutional objections to that conclusion. Defendant argues that permitting the State to establish probable cause through hearsay evidence violates his rights under the Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, as well as separation of powers principles. Of the constitutional rights Defendant seeks to fully invoke at the preliminary hearing, Utah courts have directly addressed the application of only one, the right to confrontation.

The court recognizes that Defendant's constitutional concerns are substantial and warrant careful consideration. Nevertheless, the court's analysis is guided by the limited function of the preliminary hearing and the governing precedent interpreting article I, section 12. In *State v. Timmerman* the Utah Supreme Court determined that the full application of a defendant's right to confrontation is necessary at trial but not at the preliminary hearing. *See* 2009 UT 58, ¶ 13, 218 P.3d 590, 594 (finding federally afforded right to confrontation is fundamentally a "trial right" not applicable at preliminary hearings). The *Timmerman* court reached this conclusion after comparing

the different purposes of the two proceedings. *Id.* at ¶¶ 9-12. That court recognized that under the amended language of article I, section 12 of Utah's Constitution a defendant at a preliminary hearing faces only a probable cause determination that is subject to a significantly lower burden of proof whereas at trial that same defendant faces a determination of his guilt or innocence that must be established beyond a reasonable doubt. *Id.* at ¶¶ 14-16, 595-96. Considering the distinction between the issues and purposes of these two proceedings, the *Timmerman* court believed a relaxed application of a defendant's constitutional right to confrontation at the preliminary hearing was appropriate. *See id.* at ¶ 13.

Although Utah courts have not addressed what is the appropriate application of other constitutional rights at a preliminary hearing, this court follows the *Timmerman* court's reasoning in concluding that a relaxed application of Defendant's constitutional rights at the upcoming preliminary hearing is likewise appropriate because of the limited purpose of the proceeding.

For example, Defendant argues that permitting the State to rely on reliable hearsay evidence deprives him of his Sixth Amendment right to effective counsel because it prevents his counsel from using all the necessary tools of effective advocacy, namely the right to cross examine any hearsay declarants. Defendant's argument rests on the premise that effective assistance of counsel requires access to the full range of adversarial tools, including cross-examination, at every stage of a criminal proceeding. The court is not persuaded by Defendant's argument. *See Strickland v. Washington*, 466 U.S. 688, 689 (1984) (explaining effectiveness of representation depends on circumstances). The full application of a defendant's right to counsel at the preliminary hearing, which is limited to a probable cause determination, need not be as exhaustive as it must be at trial. *See id.*; *see also State v. O'Brien*, 850 N.W.2d 8, 19-21 (Wis. 2014) (noting procedural rights available at trial are not necessarily available at preliminary examination). The right to counsel may be tailored to the proceeding at hand.

The same can be said for the protections under the Fourteenth Amendment's Due Process Clause. *See In re Baby Girl T.*, 2012 UT 78, ¶ 16, 298 P.3d 1251, 1255 (describing due process as flexible requiring procedural protections based on demands of the situation). At a minimum, due process requires notice and an opportunity to be heard in a meaningful manner. *See id.* at ¶¶ 16-17. The specific procedures required, however, depend upon the nature and purpose of the particular proceeding. Because a preliminary hearing is limited to determining probable cause rather than guilt or innocence, due process does not necessarily require all of the evidentiary safeguards applicable at trial. *See Gerstein v. Pugh*, 420 U.S. 103, 120-22 (1975) ("The use of an informal procedure is justified not only by the lesser consequences of a probable cause determination but also by the nature of the determination itself.").

The court is likewise unpersuaded that the Eighth Amendment is implicated by the use of reliable hearsay evidence during the preliminary hearing. The Eighth Amendment authorities cited by Defendant concern the reliability required in proceedings that determine guilt or authorize punishment, particularly capital punishment. A preliminary hearing performs neither function. *Compare Virgin* at ¶ 20, 792 (noting lower preliminary hearing standard compared to trial standard), *with Sumner v. Shuman*, 483 U.S. 66, 72 (1987) (recognizing Eighth Amendment "heightened reliability" standard). It serves only to determine whether probable cause exists to believe the charged offenses were committed by the individual charged. *See Utah Const. art. I, § 12.* Because Defendant's guilt, innocence, and punishment are not at issue during the preliminary hearing, the court concludes that the Eighth Amendment concerns identified by Defendant are not implicated at this stage of the proceedings.

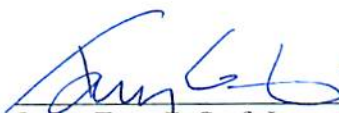
As for Defendant's argument that article I, section 12 of the Utah Constitution and rule 1102 of Utah's Rules of Evidence create an unconstitutional mandatory presumption of reliability and results in inappropriate burden shifting, the court does not find this argument persuasive. The

presumption of reliability is confined to the presumption that the hearsay evidence is admissible. *See Roosevelt City v. Nebeker*, 815 P.2d 738, 739-40 (Utah App. 1991) (declining to find statutorily imposed presumption unconstitutional when limited to admissibility of evidence). The presumption does not require the magistrate to find the evidence credible or that it supports a finding of probable cause. *Virgin* at ¶¶ 20-25, 792 (detailing the magistrate's role for purposes of bindover). The magistrate still retains the ultimate decision-making authority on whether probable cause has been established. *Id.* Admissibility and evidentiary weight remain distinct concepts. Although article I, section 12 and rule 1102 permit the admission of reliable hearsay, they do not require the magistrate to accept that evidence as credible or sufficient to establish probable cause. *Id.* And as the probable cause determination remains in the hands of the magistrate, a judicial officer, article I, section 12 and rule 1102 do not violate separation of powers principles.

Based on the foregoing analysis and findings, and after carefully considering Defendant's constitutional objections, the governing provisions of article I, section 12, rule 1102, and the applicable authorities, the court concludes that the State may utilize reliable hearsay evidence at Defendant's preliminary hearing. Accordingly, Defendant's motion is respectfully **DENIED**.

Dated this 22nd day of June, 2026.

BY THE COURT:


Judge Tony R. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

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06/23/2026

/s/ TREENA HANSEN

Date: _____

Signature